

1 ENGROSSED SENATE
2 BILL NO. 1984

By: Haste of the Senate

3 and

4 Newton of the House

5
6 An Act relating to the practice of osteopathic
7 medicine; amending 59 O.S. 2021, Sections 621, as
8 amended by Section 1, Chapter 168, O.S.L. 2025, 622,
9 as amended by Section 2, Chapter 168, O.S.L. 2025,
10 626, as amended by Section 5, Chapter 168, O.S.L.
11 2025, 632, as amended by Section 8, Chapter 168,
12 O.S.L. 2025, 633, as last amended by Section 9,
13 Chapter 168, O.S.L. 2025, 635.3, as amended by
14 Section 12, Chapter 168, O.S.L. 2025, and 637, as
15 last amended by Section 14, Chapter 168, O.S.L. 2025
16 (59 O.S. Supp. 2025, Sections 621, 622, 626, 632,
17 633, 635.3, and 637), which relate to the Oklahoma
18 Osteopathic Medicine Act; defining terms; updating
19 statutory language; broadening applicability of
20 certain requirements; expanding subpoena power of the
21 State Board of Osteopathic Examiners; authorizing the
22 Board to design certain examination; modifying
23 certain disciplinary actions; modifying, adding, and
24 removing grounds for disciplinary action; requiring
certain considerations by the Board; authorizing
issuance of emergency suspensions under certain
conditions; specifying procedures for issuance and
removal of emergency suspension; amending Section 16,
Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section
637.3), which relates to quasi-judicial powers;
updating statutory language and reference; broadening
certain power of the Board; amending 59 O.S. 2021,
Sections 641 and 645, as amended by Sections 17 and
24, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
Sections 641 and 645), which relate to the Oklahoma
Osteopathic Medicine Act; updating statutory
language; modifying criteria of certain fee;
providing for electronic license renewal; broadening
certain power of the Board; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 621, as amended by Section 1, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 621), is amended to read as follows:

Section 621. As used in the Oklahoma Osteopathic Medicine Act:

1. "Board" means the State Board of Osteopathic Examiners;

2. "Emergency" means an event, complaint, or issue that arises in which there is an immediate need for public protection as it relates to either specific individualized patient harm or an appreciable threat to the general public supported by corroborating evidence;

3. "Emergency suspension" means an immediate temporary nullification of a Board-issued license by the executive director in accordance with the Oklahoma Osteopathic Medicine Act;

4. "Incompetence" means the physician's practice falls below the applicable standard of care without proof of harm or damages;

5. "Malpractice" means the physician has a duty to exercise a standard of care and has deviated from the applicable standard of care which results in either a loss of chance or some appreciable increased risk in the potential for harm or exposure to harm;

6. "Medical negligence" means the physician has a duty to exercise a standard of care and has breached that duty by failing to

1 exercise the applicable standard of care, and those actions caused
2 harm to the patient;

3 7. "Osteopathic medicine" means a patient-centered system of
4 health care founded by Andrew Taylor Still, M.D., D.O., and based on
5 the theory that the body is capable of making its own remedies
6 against disease and other toxic conditions when it is in a normal
7 structural relationship and has favorable environmental conditions
8 and adequate nutrition. Osteopathic medicine emphasizes prevention
9 and wellness and utilizes generally accepted physical,
10 pharmacological and surgical methods of diagnosis and therapy while
11 placing strong emphasis on the importance of body mechanics and
12 manipulative methods to detect and correct faulty structure and
13 function;

14 ~~3.~~ 8. "Osteopathic physician" means a person who is licensed to
15 practice osteopathic medicine in this state; and

16 ~~4.~~ 9. "School of osteopathic medicine" or "college of
17 osteopathic medicine" means a legally chartered school or college
18 accredited by the Commission on Osteopathic College Accreditation
19 requiring:

- 20 a. for admission to its courses of study, a preliminary
21 education equal to the requirements established by the
22 American Osteopathic Association, and
23 b. for granting the D.O. degree, Doctor of Osteopathic
24 Medicine, actual attendance at such osteopathic school

1 or college and demonstration of successful completion
2 of the curriculum and recommendation for graduation.

3 SECTION 2. AMENDATORY 59 O.S. 2021, Section 622, as
4 amended by Section 2, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
5 Section 622), is amended to read as follows:

6 Section 622. A. 1. Except as otherwise provided by this
7 section, it shall be unlawful for any person to practice as an
8 osteopathic physician and surgeon in this state, without a license
9 to do so, issued by the State Board of Osteopathic Examiners;
10 provided, that any license ~~or certificate~~ issued under the laws of
11 this state, authorizing its holder to practice osteopathic medicine,
12 shall remain in full force and effect. Persons who hold themselves
13 out as osteopathic physicians in this state without a license issued
14 by the State Board of Osteopathic Examiners shall submit themselves
15 to the jurisdiction of the State Board of Osteopathic Examiners.

16 2. Osteopathic physicians engaged in postgraduate training
17 shall be licensed. Osteopathic physicians engaged in the internship
18 or PGY-1 year shall be issued a resident training license ~~and all~~.
19 All other postgraduate students ~~shall~~ may be issued an advanced
20 resident ~~training~~ license.

21 B. 1. A person within or outside of this state who:

22 a. performs through electronic communications diagnostic
23 or treatment services or other medical services, or

1 b. evaluates the medical records of and renders a medical
2 opinion of a patient in this state, including for the
3 purpose of medical insurance coverage,

4 within the scope of practice of an osteopathic physician ~~and surgeon~~
5 for any patient whose condition is being diagnosed or treated within
6 this state shall be licensed in this state, pursuant to the
7 provisions of the Oklahoma Osteopathic Medicine Act. However, in
8 such cases, a nonresident osteopathic physician who, while located
9 outside this state, consults on an irregular basis with a physician
10 who is located in this state is not required to be licensed in this
11 state.

12 2. Any osteopathic physician who engages in the practice of
13 medicine or the prescription of drugs, devices, or treatments via
14 electronic means may do so only in the context of an appropriate
15 physician-patient relationship wherein a proper patient record is
16 maintained including, at the minimum, a current history and
17 physical.

18 3. Any commissioned medical officer of the Armed Forces of the
19 United States or medical officer of the United States Public Health
20 Service or the United States Department of Veterans Affairs, in the
21 discharge of official duties whose practice is confined entirely
22 within federally controlled facilities, who is fully licensed to
23 practice osteopathic medicine and surgery in one or more
24 jurisdictions of the United States shall not be required to be

1 licensed in this state pursuant to the Oklahoma Osteopathic Medicine
2 Act, unless the person already holds an osteopathic medical license
3 in this state pursuant to the Oklahoma Osteopathic Medicine Act. In
4 such case, the medical officer shall be subject to the Oklahoma
5 Osteopathic Medicine Act.

6 4. A person who performs any of the functions covered by this
7 subsection submits themselves to the jurisdiction of the courts of
8 this state for the purposes of any cause of action resulting from
9 the functions performed.

10 C. A hospital, as defined in Section 1-701 of Title 63 of the
11 Oklahoma Statutes, or a related institution which has the principal
12 purpose or function of providing hospital or medical care including,
13 but not limited to, any corporation, association, trust, or other
14 organization organized and operated for such purpose, may employ one
15 or more persons who are duly licensed to practice osteopathic
16 medicine in this state without being regarded as itself practicing
17 osteopathic medicine within the meaning and provisions of this
18 section. The employment by the hospital or related institution of
19 any person who is duly licensed shall not, in and of itself, be
20 considered as an act of unprofessional conduct by the person so
21 employed. Nothing provided herein shall eliminate, limit or
22 restrict the liability for any act or failure to act of any
23 hospital, any hospital's employees or persons duly licensed to
24 practice osteopathic medicine.

1 D. Nothing in the Oklahoma Osteopathic Medicine Act shall be
2 construed as to require an osteopathic physician to secure an
3 Osteopathic Continuous Certification (OCC) as a condition of
4 licensure, reimbursement, employment or admitting privileges at a
5 hospital in this state. For the purposes of this subsection,
6 "Osteopathic Continuous Certification (OCC)" shall mean a continuing
7 education program measuring core competencies in the practice of
8 medicine and surgery and approved by a nationally-recognized
9 accrediting organization.

10 E. An osteopathic physician licensed under the Oklahoma
11 Osteopathic Medicine Act may not hold himself or herself out as a
12 board-certified specialist unless the osteopathic physician has
13 successfully completed the requirements for certification by the
14 American Osteopathic Association, the American Board of Medical
15 Specialties, or the American Association of Physician Specialists.
16 However, an osteopathic physician may indicate the services offered
17 and may state that his or her practice is limited to one or more
18 types of services when this statement accurately reflects the scope
19 of practice of the osteopathic physician.

20 SECTION 3. AMENDATORY 59 O.S. 2021, Section 626, as
21 amended by Section 5, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
22 Section 626), is amended to read as follows:
23
24

1 Section 626. A. 1. The State Board of Osteopathic Examiners
2 shall, immediately after the members have qualified, elect a
3 president, vice president and secretary.

4 2. The president of the Board shall preside at all meetings of
5 the Board and perform such other duties as the Board by its rule may
6 prescribe.

7 3. The vice president shall perform all the duties of the
8 president, during the president's absence or disability.

9 4. The secretary shall ensure a record is kept of all
10 proceedings of the Board and perform such other duties as are
11 prescribed in the Oklahoma Osteopathic Medicine Act, or which may be
12 prescribed by the Board.

13 B. The Board and such employees as determined by the Board
14 shall be bonded as required by Sections 85.58Q through 85.58V of
15 Title 74 of the Oklahoma Statutes.

16 C. The Board may expend such funds as are necessary in
17 implementing the duties of the Board. The Board may hire:

18 1. An executive director, who may hire all necessary
19 administrative, clerical and stenographic assistance as the Board
20 shall deem necessary and consistent with a budget to be fixed by the
21 Board;

22 2. An attorney to represent the Board in legal matters and to
23 assist authorized state and county officers in prosecuting or
24

1 restraining violations of the provisions of the Oklahoma Osteopathic
2 Medicine Act; and

3 3. One or more investigators, at least one of whom shall be
4 certified by the Council on Law Enforcement Education and Training
5 as a peace officer, as may be necessary to implement the provisions
6 of the Oklahoma Osteopathic Medicine Act. In addition, the
7 investigators may investigate and inspect, through use of a Board
8 subpoena, the nonfinancial business records of all persons licensed
9 pursuant to the Oklahoma Osteopathic Medicine Act in order to
10 determine whether or not licensees are in compliance with the
11 Oklahoma Osteopathic Medicine Act and the Uniform Controlled
12 Dangerous Substances Act or any other law, rule of this state, or
13 any federal law or rule affecting the practice of osteopathic
14 medicine.

15 D. Any licensee or applicant for license subject to the
16 provisions of the Oklahoma Osteopathic Medicine Act shall be deemed
17 to have given consent after presented with a Board subpoena by any
18 duly authorized employee or agent of the Board to access, enter, or
19 inspect the records, either on-site or at the Board office, or
20 facilities of such licensee or applicant subject to the Oklahoma
21 Osteopathic Medicine Act. The Board may compel any licensee or
22 applicant through subpoena to appear and give testimony. The
23 executive director may issue a subpoena for a substance abuse
24 screening of a licensee or applicant with no advanced notice, with

1 the written approval of the president of the Board, or in his or her
2 absence a designated member of the Board. Unless the Board subpoena
3 is legally challenged, refusal to allow such access, entry, or
4 inspection or to provide testimony may constitute grounds for
5 disciplinary action including the denial, nonrenewal, suspension, or
6 revocation of a license. Upon refusal of such access, entry, ~~or~~
7 inspection, or testimony pursuant to this ~~section~~ subsection, the
8 Board or a duly authorized representative may make application to
9 enforce the Board subpoena or to obtain a search warrant from the
10 district court where the facility or records are located to allow
11 such access, entry, or inspection.

12 SECTION 4. AMENDATORY 59 O.S. 2021, Section 632, as
13 amended by Section 8, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
14 Section 632), is amended to read as follows:

15 Section 632. A. The examination of those who desire to
16 practice as osteopathic physicians shall embrace those general
17 subjects and topics, a knowledge of which is commonly and generally
18 required of candidates for a D.O. degree, Doctor of Osteopathic
19 Medicine, by accredited osteopathic colleges in the United States.

20 B. 1. The applicant may be accepted who has successfully
21 completed the examination sequence of the National Board of
22 Osteopathic Medical Examiners and meets all other requirements as
23 prescribed by the State Board of Osteopathic Examiners through rule.
24

1 2. The Board may design, and set a scoring percentage required
2 to pass, a jurisprudence examination for individuals or groups of
3 license applicants that is designed to test an individual's
4 understanding of the laws, rules, and policies of this state
5 relating to the practice of medicine by an osteopathic physician.

6 C. The State Board of Osteopathic Examiners shall have
7 exclusive power and authority to determine the qualifications and
8 fitness of all applicants for admission to practice osteopathic
9 medicine in this state. The Board shall require that each applicant
10 submit to a national criminal history record check as defined in
11 Section 150.9 of Title 74 of the Oklahoma Statutes. The Board shall
12 not disseminate criminal history record information resulting from
13 the record check.

14 D. 1. The Board is authorized to obtain a national criminal
15 history record check on osteopathic physician applicants seeking a
16 letter of qualification for purposes of registration for expedited
17 licensure through the Interstate Medical Licensure Compact pursuant
18 to Section 493.7 of this title.

19 2. Oklahoma osteopathic physician applicants seeking a letter
20 of qualification under the Compact shall be fingerprinted for the
21 national criminal history record check. Applicant fingerprints
22 shall be submitted to the Oklahoma State Bureau of Investigation and
23 the national criminal history record check shall be conducted in
24 accordance with Section 150.9 of Title 74 of the Oklahoma Statutes.

1 The Bureau shall return national criminal history record check
2 results to the Board.

3 3. Results obtained from the national criminal history record
4 check shall be used solely for the screening of osteopathic
5 physician applicants and shall be retained by the Board. The Board
6 shall not disseminate criminal history record information resulting
7 from the record check.

8 4. This subsection shall only apply to Oklahoma osteopathic
9 physician applicants seeking an expedited license under the Compact.

10 SECTION 5. AMENDATORY 59 O.S. 2021, Section 633, as last
11 amended by Section 9, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
12 Section 633), is amended to read as follows:

13 Section 633. A. Each applicant who has met all requirements
14 for licensure shall be issued a full and unrestricted license to
15 practice as an osteopathic physician and surgeon. Upon application,
16 the State Board of Osteopathic Examiners may also issue special
17 licenses, permits, warrants, and certificates including, but not
18 limited to, a:

- 19 1. Temporary license;
- 20 2. Resident training license;
- 21 3. Advanced resident ~~training~~ license; or
- 22 4. Temporary critical need license under Section 6011 of this
23 title.

24

1 B. The Board shall, through rule, establish restrictions for
2 special licenses including, but not limited to, training licenses,
3 to ensure that the holder practices only under appropriate
4 circumstances as set by the Board.

5 SECTION 6. AMENDATORY 59 O.S. 2021, Section 635.3, as
6 amended by Section 12, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
7 Section 635.3), is amended to read as follows:

8 Section 635.3. A. There is established in this state a
9 resident training license for medical school graduates. The
10 resident training license shall be:

11 1. Issued by the State Board of Osteopathic Examiners to
12 eligible physicians;

13 2. Issued without any continuing education requirements; and

14 3. Issued for no more than one (1) year.

15 B. If the physician's resident training program specifically
16 approves the resident to have prescribing authority, the resident
17 training license shall permit the physician to apply for prescribing
18 privileges from state or federal authorities.

19 C. The resident training license shall not permit:

20 1. The physician to practice medicine beyond the scope allowed
21 by the physician's training program; or

22 2. The licensee to practice independent of the residency
23 program.
24

1 D. The resident training license is a prerequisite to
2 participation in any training program.

3 E. Any person holding a resident training license is not
4 guaranteed subsequent full or advanced resident licensure in this
5 state as an osteopathic physician.

6 F. Any application for full licensure or advanced resident
7 licensure shall be adjudged by the Board on its own merits including
8 training, education and personal background.

9 G. A physician shall meet the following requirements to be
10 eligible for a resident training license:

11 1. Completion of a resident training license application;

12 2. Payment of the application fee; and

13 3. Documentation from the applicant's Oklahoma training program
14 recommending the physician and stating the applicant meets all the
15 requirements for such licensure.

16 SECTION 7. AMENDATORY 59 O.S. 2021, Section 637, as last
17 amended by Section 14, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
18 Section 637), is amended to read as follows:

19 Section 637. A. The State Board of Osteopathic Examiners may
20 institute disciplinary action, assess fines, enforce sanctions, or
21 ~~refuse to admit a person to an examination or~~ may refuse to issue or
22 reinstate or may suspend or revoke any license issued or reinstated
23 by the Board upon proof that the applicant or holder of such a
24 license:

1 1. Has obtained a license, license renewal or authorization to
2 sit for an examination, as the case may be, through fraud,
3 deception, misrepresentation or bribery; or has been granted a
4 license, license renewal or authorization to sit for an examination
5 based upon a material mistake of fact;

6 2. Has engaged in the use or employment of dishonesty, fraud,
7 misrepresentation, false promise, false pretense, unethical conduct
8 or unprofessional conduct, as may be determined by the Board, in the
9 performance of the functions or duties of an osteopathic physician
10 including, but not limited to, the following:

- 11 a. obtaining or attempting to obtain any fee, charge,
12 tuition or other compensation by fraud, deception or
13 misrepresentation; willfully and continually
14 overcharging or overtreating patients; or charging for
15 visits to the physician's office which did not occur
16 or for services which were not rendered,
- 17 b. using intimidation, coercion or deception to obtain or
18 retain a patient or discourage the use of a second
19 opinion or consultation,
- 20 c. willfully performing inappropriate or unnecessary
21 treatment, diagnostic tests or osteopathic medical or
22 surgical services,
- 23 d. delegating administrative professional
24 responsibilities to a person who is not qualified by

1 training, skill, competency, age, or experience ~~or~~
2 ~~licensure to perform them, noting that delegation may~~
3 ~~only occur within an appropriate physician-patient~~
4 ~~relationship, wherein a proper patient record is~~
5 ~~maintained including, but not limited to, at the~~
6 ~~minimum, a current history and physical,~~

7 e. delegating medical practice responsibilities to a
8 person who is not qualified by licensure or training
9 to perform such responsibilities. Delegation may only
10 occur within an appropriate physician-patient
11 relationship in which a proper patient record is
12 maintained,

13 f. misrepresenting that any disease, ailment, or
14 infirmity can be cured by a method, procedure,
15 treatment, medicine or device,

16 ~~f.~~ g. acting in a manner which results in termination of
17 employment directly related to patient care,
18 resignation while under investigation, resignation in
19 lien of termination, or a final disciplinary action by
20 any professional society ~~or~~, association ~~or~~, medical
21 practice group, hospital, or medical staff of such
22 hospital in this or any other state, whether agreed to
23 voluntarily or not, if the action was in any way
24 related to professional conduct, professional

1 competence, malpractice or any other violation of the
2 Oklahoma Osteopathic Medicine Act,

3 ~~g. signing a blank prescription form; or dispensing,~~
4 ~~prescribing, administering or otherwise distributing~~
5 ~~any drug, controlled substance or other treatment~~
6 ~~without sufficient examination or the establishment of~~
7 ~~a physician-patient relationship, or for other than~~
8 ~~medically accepted therapeutic or experimental or~~
9 ~~investigational purpose duly authorized by a state or~~
10 ~~federal agency, or not in good faith to relieve pain~~
11 ~~and suffering, or not to treat an ailment, physical~~
12 ~~infirmity or disease, or violating any state or~~
13 ~~federal law on controlled dangerous substances~~
14 ~~including, but not limited to,~~

15 h. prescribing, dispensing or administering opioid drugs
16 in excess of the maximum limits authorized in Section
17 2-309I of Title 63 of the Oklahoma Statutes or
18 violating the Uniform Controlled Dangerous Substances
19 Act, Section 2-101 et seq. of Title 63 of the Oklahoma
20 Statutes,

21 ~~h.~~ i. engaging in any sexual activity within a physician-
22 patient relationship,
23
24

1 ~~i.~~ j. terminating the care of a patient without adequate
2 notice or without making other arrangements for the
3 continued care of the patient,

4 ~~j.~~ k. failing to furnish a copy of a patient's medical
5 records upon a proper request from the patient or
6 legal agent of the patient or another physician; or
7 failing to comply with any other law relating to
8 medical records,

9 ~~k.~~ l. failing to comply with any subpoena issued by the
10 Board,

11 ~~l.~~ m. violating a probation agreement ~~with~~ or order from
12 ~~this~~ the Board or any other agency, and

13 ~~m.~~ n. failing to keep complete and accurate records of
14 purchase and disposal of controlled ~~drugs or narcotic~~
15 ~~drugs~~ dangerous substances;

16 3. Has engaged in ~~gross negligence, gross malpractice or gross:~~

17 a. incompetence,

18 b. malpractice, or

19 c. medical negligence;

20 4. ~~Has engaged in repeated acts of negligence, malpractice or~~
21 ~~incompetence;~~

22 5. Has been finally adjudicated and found guilty, or entered a
23 plea of guilty or nolo contendere in a criminal prosecution, for any
24 offense reasonably related to the qualifications, functions or

1 duties of an osteopathic physician, whether or not a sentence is
2 imposed, and regardless of the pendency of an appeal;

3 ~~6.~~ 5. Has had the authority to engage in the activities
4 regulated by the Board revoked, suspended, restricted, modified or
5 limited, or has been reprimanded, warned or censured, probated or
6 otherwise disciplined by any other state or federal agency whether
7 or not voluntarily agreed to by the physician including, but not
8 limited to, the denial of licensure, surrender of the license,
9 permit or authority, allowing the license, permit or authority to
10 expire or lapse, or discontinuing or limiting the practice of
11 osteopathic medicine pending disposition of a complaint or
12 completion of an investigation;

13 ~~7.~~ 6. Has violated or failed to comply with provisions of any
14 act or regulation administered by the Board;

15 ~~8.~~ 7. Is incapable, for medical or psychiatric or any other
16 good cause, of discharging the functions of an osteopathic physician
17 in a manner consistent with the public's health, safety and welfare;

18 ~~9.~~ 8. Has ~~been guilty of advertising~~ advertised by means of
19 knowingly false or deceptive statements;

20 ~~10.~~ 9. Has ~~been guilty of advertising, practicing, or~~
21 ~~attempting~~ advertised, practiced, or attempted to practice under a
22 name other than one's own;

23 ~~11.~~ 10. Has violated or refused to comply with a lawful order
24 of the Board;

1 ~~12.~~ 11. Has ~~been guilty of habitual drunkenness, or habitual~~
2 ~~addiction to the use of morphine, cocaine or other habit-forming~~
3 ~~drugs~~ improperly used medications, legal or illegal drugs or
4 substances, or alcohol in any manner which could adversely impact
5 the physician's ability to provide quality unimpaired care to
6 patients;

7 ~~13.~~ 12. Has ~~been guilty of~~ demonstrated personal offensive
8 behavior, which ~~would~~ may include, but not be limited to, obscenity,
9 lewdness, and molestation;

10 ~~14.~~ 13. Has performed an abortion as defined by Section 1-730
11 of Title 63 of the Oklahoma Statutes, except for an abortion
12 necessary to prevent the death of the mother or to prevent
13 substantial or irreversible physical impairment of the mother that
14 substantially increases the risk of death. The performance of an
15 abortion on the basis of the mental or emotional health of the
16 mother shall be a violation of this paragraph, notwithstanding a
17 claim or diagnosis that the woman may engage in conduct which she
18 intends to result in her death. The Board shall impose a penalty as
19 provided in this section and in Section 637.1 of this title on a
20 licensee who violates this paragraph. The penalty shall include,
21 but not be limited to, suspension of the license for a period not
22 less than one (1) year;

1 ~~15.~~ 14. Has been adjudicated to be insane, or incompetent, or
2 admitted to an institution for the treatment of psychiatric
3 disorders;

4 ~~16.~~ 15. Has knowingly provided gender transition procedures as
5 defined in Section 2607.1 of Title 63 of the Oklahoma Statutes to a
6 child;

7 ~~17.~~ 16. Has violated any of the provisions of the Oklahoma
8 Pharmacy Act, which shall be punishable by appropriate actions
9 established in rules promulgated by the Board; ~~or~~

10 ~~18.~~ 17. Has breached the American Osteopathic Association Code
11 of Ethics or the Osteopathic Oath; or

12 18. Has violated or aided another in violating the medical
13 marijuana laws of this state as described under Section 638.1 of
14 this title or any rules or guidance issued under such section.

15 B. The Board may enter an order denying licensure or imposing
16 any of the penalties as prescribed by rule against any applicant for
17 licensure or licensee who is found guilty of violating any provision
18 of subsection A of this section. In determining what action is
19 appropriate, the Board shall first consider what sanctions are
20 necessary to protect the public or to compensate the patient. Only
21 after those sanctions have been imposed may the Board consider and
22 include in the order requirements designed to rehabilitate the
23 physician. All costs associated with compliance with orders issued
24 under this subsection shall be the obligation of the physician.

1 C. In any administrative action against a physician that does
2 not involve revocation or suspension of a license, the Board shall
3 have the burden, by the greater weight of the evidence, to establish
4 the existence of grounds for disciplinary action. The Board shall
5 establish grounds for revocation or suspension of a license by clear
6 and convincing evidence.

7 D. When determining appropriate sanctions to protect the
8 public, the Board shall consider if the osteopathic physician has
9 previously been found by the Board to have committed multiple acts
10 of medical negligence or malpractice.

11 E. The Board shall not reinstate the license ~~or certificate~~ of
12 an osteopathic physician, or cause a license ~~or certificate~~ to be
13 issued to a person it has deemed unqualified, until such time as it
14 is satisfied that he or she has complied with all the terms and
15 conditions set forth in the final order and that such person is
16 capable of safely engaging in the practice of osteopathic medicine.

17 ~~However, At a minimum the Board shall not issue a license to, or~~
18 ~~reinstate the license of, any osteopathic physician~~ consider:

19 1. Whether the licensee or prospective licensee has been found
20 by the Board to have committed ~~repeated~~ multiple acts of medical
21 negligence or malpractice, ~~regardless of the;~~

22 2. The extent to which the licensee or prospective licensee has
23 complied with all terms and conditions set forth in the final order
24 ~~or is capable;~~ and

1 3. The licensee or prospective licensee's capability of safely
2 engaging in the practice of osteopathic medicine.

3 ~~E. F.~~ The State Board of Osteopathic Examiners ~~shall neither~~
4 ~~refuse to renew, nor shall only~~ suspend, ~~nor~~ revoke ~~any, or refuse~~
5 ~~to renew a license, however, for any one or more of these the~~
6 ~~causes, unless specified in this section if~~ the person accused has
7 been given at least twenty (20) days' notice in writing of the
8 charge against him or her and a public hearing is held by the Board,
9 ~~provided, three-fourths (3/4) of a quorum present at a meeting may~~
10 ~~vote to suspend a license in an emergency situation if the licensee~~
11 ~~affected is provided a public hearing within thirty (30) days of the~~
12 ~~emergency suspension.~~

13 ~~F. G.~~ The executive director may issue an emergency suspension
14 to any license issued by the Board if an emergency exists and the
15 executive director has consulted a medical advisor prior to the
16 issuance of the emergency suspension. An emergency suspension shall
17 be effective for a period of not more than thirty (30) days. During
18 the period of emergency suspension, the individual affected is
19 entitled to a hearing at the next regularly scheduled Board meeting,
20 or a special Board meeting shall be called with at least three-
21 fourths (3/4) of a quorum present. At the hearing the Board may
22 vote to issue a temporary order to refuse renewal, table a renewal,
23 or temporarily suspend a license pending a full investigation and
24 hearing. If no hearing is held within the thirty-day period of

1 emergency suspension, the license shall revert to its status prior
2 to issuance of the emergency suspension.

3 H. The State Board of Osteopathic Examiners shall have the
4 power to order or subpoena the attendance of witnesses, the
5 inspection of records and premises and the production of relevant
6 books and papers for the investigation of matters that may come
7 before it. The presiding officer of the Board or his or her
8 designee shall have the authority to compel the giving of testimony
9 as is conferred on courts of justice.

10 ~~G.~~ I. Any osteopathic physician in this state whose license to
11 practice osteopathic medicine is revoked or suspended under this
12 section shall have the right to seek judicial review of a ruling of
13 the Board pursuant to the Administrative Procedures Act.

14 ~~H.~~ J. The Board may enact rules necessary or appropriate to the
15 performance, enforcement, or carrying out of any of the purposes,
16 objectives, or provisions of this section.

17 SECTION 8. AMENDATORY Section 16, Chapter 168, O.S.L.
18 2025 (59 O.S. Supp. 2025, Section 637.3), is amended to read as
19 follows:

20 Section 637.3. A. The State Board of Osteopathic Examiners is
21 hereby given quasi-judicial powers while sitting as a Board for the
22 purpose of revoking, suspending, or imposing other disciplinary
23 actions upon the license of an osteopathic physician ~~or~~ and surgeon
24 of this state.

1 B. To the extent necessary to allow the Board the power to
2 enforce disciplinary actions imposed by the Board, in the exercise
3 of its authority, the Board may punish ~~willful~~ violations of its
4 orders and impose additional penalties as allowed by Section 638 of
5 ~~Title 59 of the Oklahoma Statutes~~ this title.

6 SECTION 9. AMENDATORY 59 O.S. 2021, Section 641, as
7 amended by Section 17, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
8 Section 641), is amended to read as follows:

9 Section 641. A. All persons legally licensed to practice
10 osteopathic medicine in this state, on or before the first day of
11 July of each year, shall apply to the State Board of Osteopathic
12 Examiners, on forms furnished thereby, for a renewal ~~certificate of~~
13 ~~registration entitling such licensee~~ of such person's license to
14 practice osteopathic medicine and surgery in Oklahoma during the
15 next ensuing fiscal year.

16 B. The State Board of Osteopathic Examiners may prescribe
17 through rule the necessary information required relevant to a
18 licensee's professional activity including, but not limited to:

19 1. Any action taken against the licensee for acts or conduct
20 similar to acts or conduct described in the Oklahoma Osteopathic
21 Medicine Act as grounds for disciplinary action;

22 2. Any adverse judgment, settlement, or award against the
23 licensee arising from a professional liability claim;

1 3. The licensee's voluntary surrender of or voluntary
2 limitation on any license or authorization to practice medicine and
3 surgery in any jurisdiction including military, public health, and
4 foreign;

5 4. Any denial to the licensee of a license or authorization to
6 practice medicine and surgery by any jurisdiction including
7 military, public health, or foreign;

8 5. The licensee's voluntary resignation from the medical staff
9 of any health care institution or voluntary limitation of the
10 licensee's staff privileges at such an institution if that action
11 occurred while the licensee was under formal or informal
12 investigation by the institution or a committee thereof for any
13 reason related to alleged medical incompetence, unprofessional or
14 unethical conduct, or mental or physical impairment;

15 6. The licensee's voluntary resignation or withdrawal from a
16 national, state, or county medical society, association, or
17 organization if that action occurred while the licensee was under
18 formal or informal investigation or review by that body for any
19 reason related to alleged medical incompetence, unprofessional or
20 unethical conduct, or mental or physical impairment;

21 7. Whether the licensee has had any health conditions that may
22 affect his or her ability to practice safely. Disclosures shall
23 focus on current impairments that directly affect clinical
24 competence or adversely affect ability to practice medicine in a

competent, ethical, and professional manner, not on past or managed health conditions that do not impair professional duties; and

8. The licensee's completion of continuing medical education or other forms of professional maintenance or evaluation, including specialty board certification or recertification, during the previous registration period.

C. 1. Each application shall be accompanied by a ~~renewal~~ fee ~~in an amount sufficient to cover the cost and expense incurred by the State Board of Osteopathic Examiners,~~ as provided by rule for a renewal of the ~~person's certificate~~ physician's license to practice osteopathic medicine.

2. The Board may provide for the late renewal of a license upon payment of a late fee in accordance with Board rules.

D. 1. In addition to the payment of the annual renewal fee, each licensee applying for a renewal of the ~~certificate~~ license shall furnish to the State Board of Osteopathic Examiners proof that the person has attended at least ~~two (2) days~~ sixteen (16) hours of the annual educational program conducted by the Oklahoma Osteopathic Association, or its equivalent, as determined by the Board, in the fiscal year preceding the application for a renewal; provided, the Board may excuse the failure of the licensee to attend the educational program in the case of illness or other unavoidable casualty rendering it impossible for the licensee to have attended the educational program or its equivalent.

1 2. The Board shall require that the licensee receive not less
2 than one (1) hour of education in pain management or one (1) hour of
3 education in opioid use or addiction each year preceding an
4 application for renewal of a license, unless the licensee has
5 demonstrated to the satisfaction of the Board that the licensee does
6 not currently hold a valid federal Drug Enforcement Administration
7 registration number. Such education may be held at the annual
8 educational program referenced in paragraph 1 of this subsection.

9 E. The secretary of the State Board of Osteopathic Examiners
10 shall send ~~a written~~ electronic notice to every person holding a
11 ~~legal certificate~~ license to practice osteopathic medicine in this
12 state, at least thirty (30) days prior to the first day of July each
13 year, directed to the ~~last-known~~ electronic mail address of the
14 licensee, notifying the licensee that it will be necessary for the
15 licensee to pay the renewal license fee as herein provided, ~~and~~
16 ~~proper forms shall accompany the notice upon which the licensee~~
17 ~~shall make application for renewal of the certificate~~ including
18 instructions for the electronic renewal process.

19 F. The licensee shall attest to the veracity of the application
20 form for license renewal. Failure to report fully and correctly
21 shall be grounds for disciplinary action by the Board.

22 G. The Board shall establish a system for reviewing renewal
23 forms. The Board may initiate investigations and disciplinary
24

1 proceedings based on information submitted by licensees for license
2 renewal.

3 SECTION 10. AMENDATORY 59 O.S. 2021, Section 645, as
4 amended by Section 24, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
5 Section 645), is amended to read as follows:

6 Section 645. A. The State Board of Osteopathic Examiners shall
7 adopt such rules as may be necessary to implement the provisions of
8 the Oklahoma Osteopathic Medicine Act and may establish fees
9 authorized but not specified in the Oklahoma Osteopathic Medicine
10 Act.

11 B. The Board shall promulgate rules to identify essential
12 elements of education and practice necessary to protect the public.

13 C. The Board may prescribe by rule administrative remedies,
14 disciplinary actions, sanctions, and administrative procedures to
15 provide remedies and disciplinary actions for licensee violations of
16 statutory- or regulatory-prescribed unprofessional conduct, to
17 include fines up to the limits otherwise prescribed by statute or
18 rule.

19 D. The Board may provide by rule or procedures for the licensee
20 to contest or dispute any administrative action, procedures for
21 resolution of any such contest or dispute, and appropriate
22 protection of private information consistent with state and federal
23 law.

24 SECTION 11. This act shall become effective November 1, 2026.

1 Passed the Senate the 26th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives